

I. Request

1. The President of the Committee on Constitutional Affairs, Rights, Freedoms, and Guarantees of the Assembly of the Republic requested, on November 16, 2023, the National Data Protection Commission (CNPd) to issue an opinion by November 22, 2023, on Legislative Proposal 110/XV/2 (GOV) which amends the legal regimes of the Citizen Card, the Digital Mobile Key, and Electoral Registration (hereinafter simply referred to as the "Legislative Proposal").

2. The CNPD issues opinions within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, conferred by subparagraph c) of paragraph 1 of Article 57, subparagraph b) of paragraph 3 of Article 58, and paragraph 4 of Article 36, all of Regulation (EU) 2016/679 of April 27, 2016 – General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of Article 3, paragraph 2 of Article 4, and subparagraph a) of paragraph 1 of Article 6, all of Law No. 58/2019 of August 8, which implements the GDPR in the internal legal order (hereinafter LERGD).

II. Analysis

i)

The legal framework of the Legislative Proposal

3. Law No. 13/99 of March 22 establishes the legal regime for electoral registration, having been amended successively seven times.

4. Law No. 7/2007 of February 5 creates the Citizen Card and regulates its issuance, replacement, use, and cancellation, being amended by Law No. 91/2015 of August 12, Law No. 32/2017 of June 1, and Law No. 61/2021 of August 19.

5. Law No. 37/2014 of June 26 established an alternative and voluntary system for the authentication of citizens on the portals and websites of the Public Administration, called the Digital Mobile Key, being amended by Law No. 32/2017 of June 1, Law No. 71/2018 of December 31, Law No. 2/2020 of March 31, Law No. 61/2021 of August 19, and by Decree-Law No. 88/2021 of November 3.

6. In turn, Regulation (EU) 2019/1157 of the European Parliament and of the Council of June 20, 2019, reinforced the security of identity cards of Union citizens and residence permits issued to Union citizens and their family members exercising the right to free movement.

7. From this Regulation (EU) 2019/1157, we highlight the provisions of Article 10 regarding the Collection of biometric identifiers, which states in paragraph 1 that "Biometric identifiers are collected exclusively by qualified and duly authorized personnel, designated by the authorities responsible for issuing identity cards or residence permits, with the aim of being integrated into the high-security storage medium provided for in Article 3, paragraph 5, for identity cards and in Article 7, paragraph 1, for residence permits. By way of derogation from the provisions of the first sentence, fingerprints are collected exclusively by qualified and duly authorized personnel of those authorities, except in cases of requests made to the diplomatic and consular authorities of the Member State. In order to ensure the consistency of biometric identifiers with the identity of the applicant, the applicant must appear in person at least once during the issuance process of each application."

8. In the subsequent Article 11 of the Regulation, titled Protection of personal data and responsibility, it is referenced, among other things, that: "1. Without prejudice to the provisions of Regulation (EU) 2016/679, Member States shall ensure the security, integrity, authenticity, and confidentiality of the data collected and stored for the purposes of this regulation; 2. For the purposes of this regulation, the authorities responsible for issuing identity cards and residence permits are considered responsible for the processing of personal data, as referred to in Article 4, paragraph 7, of Regulation (EU) 2016/679; 3. Member States must ensure that supervisory authorities can fully exercise their functions under Regulation (EU) 2016/679, including access to all personal data and all necessary information, as well as access to any facilities or data processing equipment of the competent authorities."

9. The normative legal framework regarding data protection establishes the relevant legal framework for the assessment of this Legislative Proposal, particularly concerning the principles related to the

processing of personal data, with emphasis on the Charter of Fundamental Rights of the European Union (hereinafter CDFUE) and the General Data Protection Regulation (GDPR).

10. Thus, according to Article 8 of the CDFUE, the processing of personal data must be carried out with strict respect for the rights, freedoms, and guarantees of individuals, especially the right to the protection of personal data (principle of legality).

11. Regarding the GDPR, it stipulates in Article 5, paragraph 1 that personal data must be: i) Subject to lawful, fair, and transparent processing (lawfulness, fairness, and transparency); ii) Collected for specified, explicit, and legitimate purposes, and not processed in a manner incompatible with those purposes (purpose limitation); iii) Adequate, relevant, and limited to what is necessary for the purposes for which they are processed (data minimization); iv) Accurate and kept up to date as necessary, and all reasonable measures must be taken to ensure that inaccurate data are erased or rectified without delay (accuracy of data).

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data); v) Retained in a manner that allows for the identification of data subjects only for the period necessary for the purposes for which they are processed (data retention limitation); vi) Processed in a way that ensures their security, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (integrity and confidentiality).

12. Lastly, Article 5, paragraph 2 establishes the command that the data controller must adopt measures that allow them to demonstrate that the processing of personal data is carried out in accordance with the stated principles (accountability).

ii) The legal design of the Projects and their sustainability

13. The Explanatory Memorandum begins by stating that “Regulation (EU) 2019/1157 of the European Parliament and of the Council, of June 20, 2019, which aims to enhance the security of identity cards of Union citizens and residence permits issued to Union citizens and their family members exercising the right to free movement, introduced some changes to the information contained in the citizen card and to the way it is stored and accessed. This Bill makes the necessary adjustments to Law No. 7/2007, of February 5, aligning it with the new requirements.”

14. It further states that “This bill also presents a reformulation of the legal regime of the address associated with the citizen card without a physical postal address. The proposal now formulated aims to ensure the effectiveness of monitoring mechanisms for individuals without a physical postal address, including homeless individuals, leveraging existing proximity structures, such as municipalities and parishes, as well as non-profit entities, and ensuring the citizen's freedom of choice among such entities, in order to benefit from existing proximity relationships and enhance the effectiveness of this regime. It is also intended to ensure that the use of mechanisms for assigning a physical postal address to those who do not have one, for the purpose of registering the address of the citizen card, does not create additional risks of establishing an address different from the one that actually exists.”

15. Thus, it clarifies that “The proposal presented, in addition to ensuring the effective cooperation of public entities, namely municipalities and parishes, in unconditional support for citizens without a physical postal address, creates a mechanism for certifying the aforementioned condition, aiming to guarantee the authenticity and integrity of the data associated with the citizen card,” so that “In order to allow for its immediate applicability, a legal norm is proposed for the treatment of correspondence for citizens without a physical postal address, ensuring the confidentiality and integrity of communications addressed to them, without prejudice to the maintenance of the different applicable legal regimes, namely regarding notifications and deadlines.”

2v.

16. The Bill mentions its object (Article 1), makes amendments to Law No. 13/99, of March 22 (Article 2), to Law No. 7/2007, of February 5 (Article 3), as well as to Law No. 37/2014, of June 26 (Article 4). It also makes additions to the aforementioned Law No. 7/2007 (Article 5) and regulates the treatment of

correspondence for citizens without a physical postal address (Articles 6 and 7). Finally, it indicates the repealed norms (Article 8), the moment of the legal effects (Article 9), and determines its entry into force (Article 10).

17. The Bill is based on the aforementioned Regulation (EU) 2019/1157 and spans three legal instruments, making surgical amendments. For this purpose, it does not only aim to align the new reality of the mentioned legal framework with that binding legislative act of the European Union, but also reformulates the legal regime of the address associated with the citizen card without a physical postal address, which has a particular sensitivity due to the vulnerability of the individuals involved.

18. In this regard, the six (6) days granted to the CNPD to comment on the aforementioned Bill is too short and does not allow for the necessary and due reflection on its study. Despite this temporal obstacle, we will analyze the most pressing issues impacting the protection of personal data.

iii) The possible impact of the Projects on the protection of personal data

19. The European Data Protection Supervisor (EDPS) – in Portuguese, Agência Europeia de Proteção de Dados (AEPD) – issued its Opinion 7/2018, on August 10, regarding the so-called “on the Proposal for a Regulation strengthening the security of identity cards of Union citizens and other documents.”

20. In that Opinion, the following conclusions were expressed, which we now transcribe according to our translation:

“The AEPD observes that the Commission clearly opted to prioritize aspects of the proposal related to the freedom of movement and to treat the security-related objective as a corollary. The AEPD believes that this may impact the analysis of the necessity and proportionality of the elements of the proposal. The AEPD supports the European Commission’s objective of strengthening the security standards applicable to identity cards and residence documents, thereby contributing to the overall security of the Union.

At the same time, the AEPD considers that the proposal does not sufficiently justify the necessity of processing.”

1 Accessible at https://edps.europa.eu/sites/edp/files/publication/18-08-10_opinion_eid_en.pdf.
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the two types of biometric data (facial image and fingerprints) in this context, when the stated objectives could be achieved through a less intrusive approach.

In the legal framework of the EU, as well as under the modernized Convention 108, biometric data are considered sensitive data and are subject to special protection. The AEPD emphasizes that both facial images and fingerprints that would be processed under the proposal clearly fall within this category of sensitive data.

Furthermore, the AEPD considers that the proposal would have a far-reaching impact on a maximum of 370 million EU citizens, potentially subjecting 85% of the EU population to the obligation of fingerprint collection. This vast scope, combined with the very sensitive data processed (facial images in combination with fingerprints), requires a thorough examination in accordance with a rigorous necessity test.

Additionally, the AEPD recognizes that, given the differences between identity cards and passports, the introduction of security elements that may be considered appropriate for passports into identity cards cannot be done automatically, but requires reflection and thorough analysis.

Moreover, the AEPD would like to emphasize that Article 35(10) of the GDPR would be applicable to the processing in question. In this context, the AEPD notes that the impact assessment accompanying the proposal does not seem to support the political option chosen by the Commission, namely, the mandatory inclusion of facial images and (two) fingerprints in identity cards (and residence documents). Therefore, the impact assessment accompanying the proposal cannot be considered sufficient for compliance with Article 35(10) of the GDPR. Consequently, the AEPD recommends that the necessity and proportionality of the processing of biometric data (facial image in combination with fingerprints) in this context be reassessed.

Furthermore, the proposal must explicitly provide safeguards against the creation by Member States of national fingerprint databases in the context of the implementation of the proposal. A provision should

be added to the proposal that explicitly states that the biometric data processed in its context must be deleted immediately after their inclusion in the chip and cannot be processed subsequently for purposes other than those explicitly provided for in the proposal.

The AEPD understands that the use of biometric data may be considered a legitimate anti-fraud measure, but the proposal does not justify the necessity of storing two types of biometric data for the purposes outlined therein. One option to consider could be to limit the biometric data used to one type (for example, only the facial image).

Additionally, the AEPD would like to underline that it understands that storing fingerprint images improves interoperability, but at the same time increases the amount of biometric data processed and the risk of identity fraud in the event of a personal data breach. Therefore, the AEPD recommends that the fingerprint data stored on the chip of the documents be limited to minutiae or patterns, to a subset of the features extracted from the fingerprint image.

Finally, considering the wide range and potential impact of the aforementioned proposal, the AEPD recommends setting the age limit for the collection of fingerprints from children under the proposal at 14 years, in line with other instruments of EU law.

21. The CNPD notes regarding the aforementioned Law No. 7/2007 that the identification elements of the holder mentioned in its Article 7 now include the "Card access number" (paragraph h) of No. 4), which is distinct from the "Document number" (paragraph c) of No. 4) and the "Citizen card version number" (paragraph d) of No. 4). This is yet another number whose utility and functionality are not specified.

22. The CNPD records that the present Bill opts to confer a wide regulatory spectrum through Regulations, such as the "technical standards for storage, access, reading, security, and interoperability of the data contained in the integrated circuit" (No. 4 of Article 6 of Law No. 7/2007), the "validity of [digital] certificates and their replacement or renewal" (No. 8 of Article 18 of Law No. 7/2007), and "requests regarding the citizen card can also be submitted and processed remotely through other service channels provided by the IRN, I. P., or by the AMA, I. P., such as automatic service points, the Single Service Portal, telephone, video call, or mobile application" (No. 3 of Article 20 of Law No. 7/2007). In this regard, and maintaining this option, it is suggested that in the future a single Regulation be chosen, rather than its proliferation, in order to condense the regulatory options, facilitating the understanding of its legal discipline.

23. It is also worth mentioning that, contrary to what is established in No. 3 of Article 11 of Regulation (EU) 2019/1157, the Bill removes the obligation to communicate to the CNPD the Protocols established under Article 24 of Law No. 7/2007 (i.e., Protocols on the transmission of data and the issuance of documents provided for in No. 4 of Article 24 of Law No. 7/2007, established between the targeted public entities, the IRN, I. P., and the AMA, I. P., under the provisions of Nos. 5 and 6 of the same legal provision), as well as the identity of the individuals who meet the conditions mentioned in No. 3 of Article 38 of the aforementioned Law No. 7/2007.

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24. It is emphasized that, as the protection of personal data is anchored in the more protective legal regime of fundamental rights, the intended legislative option undermines any judgment that may be issued regarding these rights, particularly those provided for in Article 5 of the GDPR, leaving it to the discretion of administrative entities to develop data protection regimes without any type of oversight.

25. The aforementioned Law No. 37/2014 now provides in its Article 2, No. 1 that "Every citizen is allowed to associate their civil identification number with a personal mobile phone number and email address and another mobile phone number and email address for professional purposes."

26. Accordingly, the civil identification number and its use through the Digital Mobile Key is now associated with strictly personal use as well as professional use, namely within the scope of an employment relationship.

27. However, the latter is only acceptable when there is free consent for that purpose, in accordance with the provisions of Article 7 of the GDPR. For this purpose, a normative segment should be added in this sense, or at least a mere reference, "without prejudice to the provisions of Article 7 of the

GDPR, when such use is within the scope of an employment relationship.”

28. In turn, Article 3, No. 6 of Law No. 37/2014 now states that “Authentication mechanisms in electronic systems and websites may be made available to citizens holding CMD, as provided for in the previous numbers, for the purpose of exercising parental responsibilities or representing a legally incapacitated adult.”

29. The breadth of this normative scope for the use of the Digital Mobile Key may conflict with the protection of personal data in the health sector, whether concerning minors under 16 or regarding legally incapacitated adults.

30. In the first case, a minor aged 16 or older can consent to medical acts (Article 38, No. 3 of the Penal Code), such as voluntary termination of pregnancy (Article 142, No. 5 contrary to the Penal Code), without needing parental authorization, and may choose to maintain the confidentiality of that information.

31. In the second case, it should be noted that a legally incapacitated adult may be subject to general representation or special representation (subparagraph b) of No. 2 of Article 145 of the Civil Code), with only the former allowing for a model of full substitution, thus the reference to “representation of a legally incapacitated adult” is ambiguous.

4v.

32. Regarding the legal regime of the address associated with the citizen card without a physical postal address, Article 13-A was added to the aforementioned Law No. 7/2007, whose No. 6 has the following wording: “For the purpose of indicating the physical postal address of a parish building, municipality, association, or other non-profit civil society entity as the address of a national citizen without a physical postal address, the entities declare the respective physical postal address on the electronic platform made available for this purpose by IRN, I.P., on the digital justice platform, using strong authentication.”

33. But the question remains: what does this “strong authentication” consist of? Nothing is said.

34. Finally, the CNPD draws attention to the observance of the provisions of No. 4 of Article 18 of Law No. 43/2004, of August 18 (Law on the Organization and Operation of the National Data Protection Commission), according to which “Requests for opinions on legal and regulatory provisions in preparation must be sent to the CNPD by the holder of the body with legislative or regulatory power, accompanied by the respective impact study on the protection of personal data.”

35. However, the present request for an opinion was submitted without the aforementioned impact study on the protection of personal data.

36. Such an omission may compromise a more complete assessment of the probable risks arising from the processing of personal data to be carried out and, above all, may hinder the informed decision-making of holders of political-legislative power in a matter where understanding such risks is essential to conclude, on a legislative level, regarding the admissibility and conditions for the execution of new data processing.

III. CONCLUSIONS

37. In accordance with the terms and grounds set forth above, the CNPD issues this opinion, recommending:

- a) The strengthening of security standards applicable to the citizen card, in accordance with what was previously pointed out by the AEPD;
- b) The clarification of the utility and functionality of the “Access Number to the card” (subparagraph h) of No. 4 of Article 7 of Law No. 7/2007);
- c) The regulation by Order should consist of only a single diploma;
- d) The maintenance of the obligation to communicate to the CNPD the Protocols, as well as the identity of individuals, as mentioned in points 23 and 24;

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- e) The clarification of the need for free consent for professional use of the citizen card within the scope of an employment relationship;

- f) The clarification of the use of the Digital Mobile Key in the context of parental responsibilities only concerning minors under 16 years of age and in the context of legal representation only in cases of general representation;
- g) The strengthening of the legal regime of the address associated with the citizen card without a physical postal address, specifying what is meant by the so-called “strong authentication.”

Approved at the meeting of November 28, 2023

Paula Meira Lourenço (President)

Signed by: PAULA CRISTINA MEIRA LOURENÇO

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